

IN THE COUNTY COURT OF THE TWELFTH JUDICIAL CIRCUIT
IN AND FOR MANATEE COUNTY, FLORIDA

COLONIAL MANOR MHC HOLDINGS, LLC,
Plaintiff,

vs.

Case No.: 2025-CC-000714

SYLVIA HERNANDEZ AVALOS, FRANK J. AVALOS
and ANY UNKNOWN PARTY(s) IN POSSESSION,
Defendants.

NOTICE OF FILING CASE LAW AND STATUTES

COMES NOW, the Plaintiff, COLONIAL MANOR MHC HOLDINGS, LLC, by and through their undersigned attorney, hereby gives notice of filing the following cases and statute relating to the above referenced matter, to-wit:

Naples Estates Ltd. P'ship v. Muston, 327 So. 3d 419 (Fla. 2d DCA 2021)

First Hanover v. Vazquez, 848 So. 2d 1188 (Fla. 3d DCA 2003)

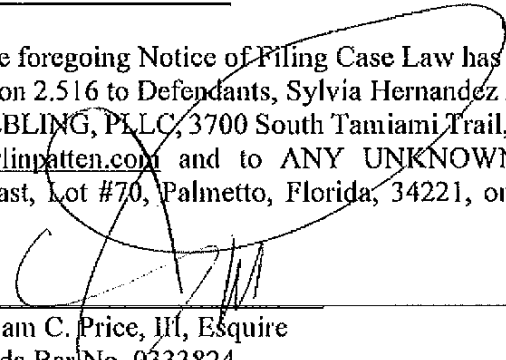
James Stewart Fogelman v. MHC Eldorado Village, 23 Fla. L. Weekly Supp. 668b

Joanne E. Abramski v. Paradise Park Co-Op, Inc., 19 Fla. L. Weekly Supp. 178a

Fla Stat § 723.002; Fla Stat § 723.004; Fla Stat § 723.063

CERTIFICATE OF SERVICE

I HEREBY CERTIFY that a true copy of the foregoing Notice of Filing Case Law has been furnished in accordance with Florida Rule of Judicial Administration 2.516 to Defendants, Sylvia Hernandez Avalos and Frank Avalos c/o Tyler A. Dixon, Esq.; BERLIN PATTEN EBLING, PLLC, 3700 South Tamiami Trail, Sarasota, Florida 34239 at tdixon@berlinpatten.com and gcare@berlinpatten.com and to ANY UNKNOWN PARTY(s) IN POSSESSION via U.S. Mail at 900 - 9th Avenue East, Lot #70, Palmetto, Florida, 34221, on this 2nd day of September, 2025.



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Naples Estates Ltd. P'ship v. Muston

Court of Appeal of Florida, Second District

September 10, 2021, Decided

No. 2D20-1352

Reporter

327 So. 3d 419 *; 2021 Fla. App. LEXIS 12897 **; 46 Fla. L. Weekly D 2018; 2021 WL 4125789

NAPLES ESTATES LIMITED PARTNERSHIP, Appellant, v. PAMELA MUSTON; WILLIAM BAILIE; and UNKNOWN/UNAUTHORIZED OCCUPANT(S), Appellees.

Prior History: **[**1]** Appeal from the Circuit Court for Collier County; Joseph G. Foster, Judge.

Naples Estates Homeowners Ass'n v. Naples Estates L.P., 137 So. 3d 385, 2014 Fla. App. LEXIS 5520 (Fla. Dist. Ct. App. 2d Dist., Apr. 16, 2014)

Counsel: Jody B. Gabel and J. Allen Bobo of Lutz, Bobo & Telfair, P.A., Sarasota, for Appellant.

Donald E. Christopher of Baker Donelson Bearman Caldwell & Berkowitz, PC, Orlando, for Appellees Pamela Muston and William Bailie.

No appearance for remaining Appellees.

Judges: ATKINSON, Judge. VILLANTI and ROTHSTEIN-YOUAKIM, JJ., Concur.

Opinion by: ATKINSON

Opinion

[*420] ATKINSON, Judge.

Naples Estates Limited Partnership (Naples Estates) appeals the amount of damages it was awarded in a second amended final judgment of damages (the Judgment) entered in its favor against Pamela Muston and William Bailie, mobile park home owners (Home Owners), who elected to continue to pay the original amount of rent notwithstanding an order entered in another case to which they were not named parties. That order (the Rent Order) stated in pertinent part:

1. During the pendency of this action, some homeowners of Naples Estates Mobile Home Park ("Participating Homeowners") represented by Naples Estates Homeowners Association, Inc. (the "Association") have contested the lot rental amount charged by Naples Estates Limited Partnership ("Owner") and have refused to pay a portion of **[**2]** each Participating Homeowner's monthly lot rental amount as defined in Section 723.003(2), Florida Statutes. The disputed rents are the difference between what a Participating Homeowner has paid monthly since May 1, 2007 and six hundred dollars (\$600) per lot per month for standard lots and six hundred ten dollars (\$610) per lot per month for premium lots (the "Disputed Funds"). . . .

3. Each Participating Homeowner shall pay their portion of the Disputed Funds into the Court Registry on or before 09 September 2013. Time is of **[*421]** the essence. A failure to timely deposit all Disputed Funds shall be deemed a default of this order.

4. Any Participating Homeowner in default of this order shall not be eligible for membership in any putative class which may be approved in this action; shall be subject to eviction pursuant to the proceedings set forth in Section 723.061, Florida Statutes; and shall be deemed to have waived any defenses, other than payment, in any eviction action based upon such default as set forth in Section 723.062(2), Florida Statutes.

In compliance with paragraph 3 of the order, on September 9, 2013, the Home Owners made an initial payment into the registry of \$8,645.76—the difference between \$600 per month and what they had paid per month from May 1, 2007, to September 1, 2013. **[**3]** However, they then continued to pay the amount that she contended was due, as opposed to the \$600 per month that Naples Estates claimed they owed, which Naples Estates accepted until October 1, 2015.

On October 28, 2015, Naples Estates sued the Home Owners for eviction and damages (eviction action). Prior to instituting the suit, Naples Estates mailed the Home Owners a letter pursuant to section 723.061(1)(a), Florida Statutes (2015), demanding that they remit \$4,569.73 for the difference between what they paid during the preceding twenty-four months and the \$600 per month that Naples Estates stated they owed.

Pursuant to an order entered by the court in the eviction action, the Home Owners deposited \$11,169.73 into the court registry, representing the total amount in Naples Estates' demand letter plus monthly rent of \$600 from the date of the filing of the complaint through August 31, 2016. The court indicated that it would reserve ruling on the issue of whether Naples Estates "waived the right to collect rents for all months prior to filing the Complaint in which Defendants tendered a rental payment to Plaintiff that Plaintiff accepted without objection or exception." The court further indicated that it would return a portion **[**4]** of the funds deposited into the registry if the court determined at trial that waiver occurred or "that a different amount of monthly rent, less than the \$600.00 demanded by the Plaintiff was reasonable." Thereafter, the Home Owners continued to pay \$600 each month into the court registry.

After a trial, the court awarded Naples Estates \$30,600, for the rent for the period from October 2015 through December 2019. It directed the Clerk to disburse the balance of the funds in the court registry to the Home Owners.

Naples Estates argues on appeal that the trial court erred by failing to award it \$4,569.73 (the full \$600 per month that the Home Owners failed to pay during the twenty-four months before it filed suit). Although not explicitly articulated in the sparsely worded Judgment, it is apparent from the record, including the amount awarded and the Home Owners' written closing, that the trial court credited the Home Owners' defense of waiver and estoppel. The Home Owners argued below, and now argue on appeal, that Naples Estates waived the right to collect the entire \$600 per month from them during the twenty-four months prior to the eviction action because it accepted their payments **[**5]** of lesser sums during that time.

Naples Estates asserts that the Home Owners waived their right to assert defenses other than payment, such as waiver and estoppel, because they failed to deposit the disputed rent from October 2013 through October 2015. Section 723.063, Florida Statutes (2015) governs a **[*422]** mobile home owner's defenses to an action for rent or possession and states, in pertinent part, "In any action based upon nonpayment of rent or seeking to recover unpaid rent, or a portion thereof, the mobile home owner may defend upon the ground of a material noncompliance with any portion of this chapter or may raise any other defense, whether legal or equitable, which he or she may have." See § 723.063(1). To raise these defenses, the mobile home owner must pay the disputed rent into the court registry.

(2) In any action by the park owner or a mobile home owner brought under subsection (1), the mobile home owner shall pay into the registry of the court that portion of the accrued rent, if any, relating to the claim of material noncompliance as alleged in the complaint, or as determined by the court. The court shall notify the mobile home owner of such requirement. The failure of the mobile home owner to pay the rent, or portion thereof, into **[**6]** the registry of the court as required herein constitutes an absolute waiver of the mobile home owner's defenses other than payment, and the park owner is entitled to an immediate default.

§ 723.063(2). It is apparent from the introductory clause, "In any action by the park owner . . . brought under subsection (1)," that the rent deposit requirement did not begin until the eviction action against the Home Owners had commenced, after which point the Home Owners did deposit the requisite amount.

However, although not waived by a failure to comply with section 723.063(2), the Home Owners' waiver and estoppel defense is unavailing. In order for a waiver to occur there must be: (1) a right, privilege, or benefit that existed at the time of the waiver and which may be waived; (2) the actual or constructive knowledge of that right, privilege, or benefit; and (3) an intention to relinquish that right, privilege, or benefit. See Arbogast v. Bryan, 393 So. 2d 606, 608 (Fla. 4th DCA 1981). A waiver may be "implied from conduct, the acts, conduct, or circumstances," but it "does not arise from forbearance for a reasonable time." Fireman's Fund Ins. Co. v. Vogel, 195 So. 2d 20, 24 (Fla. 2d DCA 1967).

Naples Estates accepted direct payments from the Home Owners for less than the full \$600 rent for twenty-four months preceding the eviction action. The Home Owners were **[**7]** fully aware during this time that Naples Estates was contending that the proper amount of rent was \$600. Naples Estates had served the Home Owners with a copy of the Rent Order—which required payment of the disputed portion of the rent into the court registry. And the Home Owners complied with its directive by making a payment of \$8,645.76 into the court registry.

The Home Owners argue that the Rent Order only directed a single payment of the disputed rents from May 2007 through September 2013. They contend that it did not create a continuing obligation to deposit the \$600 per month. But that interpretive dispute about the Rent Order's language is no more important than the now irrelevant question of whether it should have been binding on the Home Owners even though they were purported strangers to the litigation in which it was entered. What is relevant is that they were made aware that Naples Estates was charging them \$600 per month, a rate that the trial court ultimately approved in the case brought against them individually.

Muston admitted at trial that she knowingly paid less than the amount required under the Rent Order prior to the pendency of the eviction action. And although **[**8]** it received less than the amount it contended **[*423]** that it was owed during the twenty-four months, Naples Estates was operating under the reasonable presumption that the balance was being paid into the registry. Under these circumstances, by accepting less than the full amount, Naples Estates did not knowingly relinquish its right to the full amount—the difference between the two being the subject of the ongoing litigation of which both parties were very much aware. See Arbogast, 393 So. 2d at 607 ("Waiver is the intentional relinquishment of a known right, or the voluntary relinquishment of a known right, or conduct which warrants an inference of the relinquishment of a known right.").¹

The record justifies no conclusion other than that the trial court denied Naples Estates the difference in rent during the twenty-four-month period based on an erroneous finding of waiver and estoppel. In their written closing, the Home Owners concede that they "owe[d] [Naples Estates] rent at the rate of \$600 per month for all months since filing of the eviction lawsuit." And the trial court ultimately approved of the \$600 rate. In other words, but for the waiver and estoppel defense, the Home Owners owed the entire \$600 following **[**9]** the issuance of the Rent Order.

As such, we need not address the Home Owners' contention that the Rent Order did not bind them because it was entered in a case to which they were not parties. We need not reach the questions of whether the Home Owners were part of the class or whether they were statutorily bound by the association as their representative. See §§ 723.075(1) ("Upon incorporation and service of the notice described in s. 723.076, the association shall become the representative of all the mobile home owners in all matters relating to this chapter, regardless of whether the

¹Equally unavailing for these reasons is the Home Owners' argument that the parties' course of dealings established that the rent during the twenty-four-month period was what Naples Estates accepted from the Home Owners, not the \$600. The suggestion that an oral lease was created by Naples Estates' acceptance of a lesser amount with the understanding that the difference between that and the demanded amount would be deposited in the registry during an ongoing dispute about the proper amount defies logic.

homeowner is a member of the association."), .037(1) ("The homeowners' association shall have no standing to challenge the increase in lot rental amount, reduction in services or utilities, or change of rules and regulations unless a majority of the affected homeowners agree, in writing, to such representation.").

By the time Naples Estates filed suit against the Home Owners, they had already been on notice that the landlord was charging them more rent than they thought they owed and had been demanding it for at least the twenty-four months in question before the time of filing suit. At that point, the parties were in a run-of-the-mill **[**10]** rent dispute, and Naples Estates' actions for breach of lease and damages for unpaid rent were not necessarily reliant on the validity of the Rent Order itself.² The landlord made it clear it expected **[*424]** rent at a specified rate; the tenants disagreed that was what they owed. Ultimately the trial court concluded that the amount of rent due to Naples Estates was the \$600 per month that Naples Estates had charged but the Home Owners had not paid.

There is nothing in the record to indicate that the trial court found the \$600 rental rate unenforceable during the twenty-four-month period. Indeed, the trial court lacked discretion to award a lower amount of rent absent a finding that the rate was unreasonable. Section 723.033(1) authorizes the trial court to refuse to enforce the rent increase if it finds, as a matter of law, that "a mobile home lot rental amount, rent increase, or change, or any provision of the rental agreement, to be unreasonable." It also authorizes the court to provide "such other equitable relief as deemed necessary." *Id.* However, the amount is only unreasonable under 723.033(3) if it "is in excess of market rent." There was no evidence presented at trial concerning whether **[**11]** the rent in the twenty-four months before the eviction action was consistent with the market rent. And the trial court's approval of prospective rent at that rate dispels any ongoing debate as to its reasonableness. Nor is there—or was there ever in Naples Estates' case against the Home Owners—any debate about Naples Estates' compliance with the other statutory requirements for raising rent. See generally §§ 723.033, .037, and .038, Fla. Stat. (2007).

This is a rent dispute in which Naples Estates dispositively established the amount of rent the Home Owners were required to pay, and the defense of waiver and estoppel did not excuse their obligation to do so. Because the Home Owners owed the full rent in the twenty-four months preceding the eviction action, the trial court erred in failing to award Naples Estates the additional \$4,569.73 that the Home Owners paid into the court registry.

Reversed in part and remanded.

VILLANTI and ROTHSTEIN-YOUAKIM, JJ., Concur.

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²Naples Estates also argued that the per curiam affirmance of the Rent Order, *Naples Estates Homeowners Ass'n, Inc. v. Naples Estates Limited Partnership*, 137 So. 3d 385 (Fla. 2d DCA 2014), constitutes law of the case and confirms the validity and enforceability of the Rents Order for purposes of this appeal. We need not address Naples Estates' argument—based on *Hollywood Mobile Estates Ltd. v. Hollywood Estates Independent Tenants Ass'n*, 67 So. 3d 1194, 1196 (Fla. 4th DCA 2011)—that the home owners were real parties in interest in the case in which the Rents Order was entered. Even if they were, the appeal from that case could not constitute law of the case because it was from a separate lawsuit. *Cf. TRW Auto. U.S. LLC v. Papandopolos*, 949 So. 2d 297, 301 (Fla. 4th DCA 2007) ("This court's ruling in *Nowell* cannot be the law of the case in *Papandopolos* and *Yampa* because they are separate lawsuits involving different claims, raised by different plaintiffs, and arising out of different accidents.").

First Hanover v. Vazquez, 848 So.2d 1188 (2003)

28 Fla. L. Weekly D1319

848 So.2d 1188
District Court of Appeal of Florida,
Third District.

FIRST HANOVER, et al., Appellants,
v.
Alfred VAZQUEZ, James Bogoeff, et al., Appellees.

No. 3D02-3146.

June 4, 2003.

Synopsis

In eviction actions, the Circuit Court, Monroe County, Richard Payne, J., denied landlord's motion for default and writ of possession as to one of the properties. Landlord appealed. The District Court of Appeal, Wells, J., held that tenants' assertion of fraud counterclaim did not preclude them from being required to pay rent into court registry while the action was pending.

Reversed and remanded.

Procedural Posture(s): On Appeal.

West Headnotes (3)

[1] Landlord and Tenant ⇌ Transfer of cause

Trial court order denying landlord's motion for default and writ of possession was an order determining the right to immediate possession of property, as statutory basis for bringing an immediate appeal from the non-final order. West's F.S.A. R.App.P.Rule 9.130(a)(3)(C)(ii).

4 Cases that cite this headnote

[2] Landlord and Tenant ⇌ Defenses

Tenants, in actions for possession for non-payment of rent, are obligated to pay rent as a condition to remaining in possession, irrespective of their defenses and counterclaims. West's F.S.A. § 83.60(2).

3 Cases that cite this headnote

[3] Landlord and Tenant ⇌ Transfer of cause

Tenants' assertion of counterclaim, in eviction action, that landlord had defrauded them into selling the property to landlord and then leasing it back to the tenants did not preclude tenants from being statutorily required to pay rent into the court registry while the action was pending. West's F.S.A. § 83.60(2).

8 Cases that cite this headnote

First Hanover v. Vazquez, 848 So.2d 1188 (2003)

28 Fla. L. Weekly D1319

Attorneys and Law Firms

*1189 Kiefner & Renaldo and Scott W. Fitzpatrick and John R. Kiefner, Jr., St. Petersburg, for Appellant Michael King; Hicks & Kneale and Brett C. Powell, for appellant, First Hanover, et al.

William A. Friedlander, Tallahassee, and Stephen Isherwood, Key West, for Appellee Bogoeff.

Before LEVY, RAMIREZ, and WELLS, JJ.

Opinion

WELLS, Judge.

Michael King appeals the denial of a motion for default and writ of possession for non-payment of rent relating to real property that he owns in Key West. We reverse.

[1] Initially we observe that such orders, although denying relief, have been held to be orders determining the right to immediate possession of property, and as such, are appealable under Florida Rule of Appellate Procedure 9.130(a)(3)(C)(ii). *See Florida Disc. Props. v. Windermere Condo., Inc.*, 763 So.2d 1084 (Fla. 4th DCA 1999)(concluding that an order denying a motion to require a tenant to pay rent into the registry of the court was appealable because it determined the right to immediate possession of property); *Federal Home Loan Mortgage Corp. v. Molko*, 584 So.2d 76 (Fla. 3d DCA 1991)(observing that an order denying mortgagee's request for the appointment of a receiver and directing mortgagor to pay rents into registry of court was an appealable interlocutory order, as the order determined the parties' rights to immediate possession of both mortgaged property and rents collected under the mortgage).

King is the record owner of two parcels of real property located in Key West, one at 2522 Staples Avenue, the other at 3339 Donald Avenue. The Staples Avenue property is leased to James Bogoeff and Cesar Davila; the Donald Avenue property is leased to Bogoeff alone. In June 2002, Bogoeff and Davila failed to pay the rent at the Staples Avenue property. The following month, Bogoeff failed to pay the rent at the Donald Avenue property. As a consequence, King filed two eviction actions, *1190 one relating to the Staples Avenue property, the other relating to the Donald Avenue property, seeking possession for non-payment of rent.

Bogoeff and Davila thereafter successfully moved to consolidate these two actions with a pending action, styled *Vazquez v. Kamal*, Case No. CA-K-02-866, in which they claimed that King had defrauded them into selling the properties that they currently were renting (and which were the subject of King's eviction actions).¹ However, before the actions were consolidated, the trial judge in the Donald Avenue action (the action involving property leased solely to Bogoeff), entered an order mandating the payment of rent on that property into the court registry failing which King would be entitled to a writ of possession. Because no similar order was entered prior to consolidation of the Staples Avenue action (the action involving the lease to Davila and Bogoeff), King sought in the consolidated action, to mandate, pursuant to section 83.60, Florida Statutes(2002), either payment of rent relating to that property into the court registry or entry of default and a writ of possession. That request was denied and is the subject of this appeal.

Section 83.60(2), without equivocation, provides:

First Hanover v. Vazquez, 848 So.2d 1188 (2003)

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In an action by the landlord for possession of a dwelling unit, if the tenant interposes *any defense other than payment*, the tenant shall pay into the registry of the court the accrued rent as alleged in the complaint or as determined by the court and the rent which accrues during the pendency of the proceeding, when due.... Failure of the tenant to pay the rent into the registry ... constitutes an absolute waiver of the tenant's defenses other than payment, and the landlord is entitled to an immediate default judgment for removal of the tenant with a writ of possession to issue without further notice or hearing thereon.

(Emphasis added).

[2] Under this provision, tenants in actions for possession for non-payment of rent are obligated to pay rent as a condition to remaining in possession irrespective of their defenses and counterclaims.

In *K.D. Lewis Enterprises Corp. v. Smith*, 445 So.2d 1032 (Fla. 5th DCA 1984), the Fifth District upheld writs of possession against tenants who refused to pay rent claiming their landlord had failed to maintain the premises. The tenants argued that they were entitled to stay in their apartments without paying rent and without depositing rent into the court registry because the deposit requirement imposed by section 83.60 applied only to actions for possession, not to actions involving counterclaims for injunctive *1191 relief and damages. In rejecting this argument, the *K.D.* court stated:

[C]ounsel for the tenants candidly conceded that had the tenants' suit proved to be without merit, a judgment for rent owed would have been valueless because they were "judgment proof." We believe the Legislature anticipated such an eventuality in drafting the statute [section 83.60]. As now framed, the landlord may recover his rent should the tenants' suit have no legal basis. On the other hand, should the tenants' suit have merit, the rent is not lost to them. To follow the course suggested by the tenants would enable a devious tenant to live rent free during the litigation, if he could frame a legally sufficient pleading. We see no more reason to expect a landlord to continue furnishing housing without rent than to expect an oil supplier to continue furnishing oil without payment during a period of litigation.

Id. at 1035.

[3] We find the same analysis applicable to the instant dispute.² In accordance with section 83.60, the landlord in this case was entitled to payment of rent either directly or into the court registry, and on the tenants' failure to do so, the landlord was entitled to a default and a writ of possession. This determination comes with the same caveat observed in *K.D.*, 445 So.2d at 1035, that the tenants' cause of action is not lost to them, rather they lose only their right to retain possession of the premises by their failure to pay the rent to the landlord or into the registry of the court.

Reversed and remanded.

All Citations

848 So.2d 1188, 28 Fla. L. Weekly D1319

First Hanover v. Vazquez, 848 So.2d 1188 (2003)

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Footnotes

- 1 In that action, Davila and Bogoeff claimed that they initially owned the Staples and Donald Avenue properties and that when their properties went into foreclosure, they had been contacted by King or one of the other defendants named in that action, who informed them that they could save their homes by entering into a "buy back" arrangement, in which they would sell their homes to an "investor" (here King), lease their homes for twelve months from the investor, and if they timely made all lease payments, would qualify to refinance a buy back through another named defendant, First Hanover Mortgage. Davila and Bogoeff also claimed that they were promised that the lease payments would be less than the mortgage payments that they had been unable to meet. However, upon entering into these lease arrangements, Davila and Bogoeff discovered that the lease payments were actually far more than their prior mortgage payments had been, and when they were unable to meet these payments, King, through his agents, First Hanover Mortgage, and Property Management Co., had initiated eviction proceedings.
- 2 We, like the *K.D.* court, conclude that our earlier decision in *Freedman v. Geiger*, 314 So.2d 189 (Fla. 3d DCA 1975), poses no conflict with this analysis. In *Freedman*, we concluded that granting a default in a landlord's favor was error in an action not solely for relief under section 83.60. But as the *K.D.* court observed, the tenants in *Freedman* were in substantial compliance with section 83.60 because they had not only made court-ordered rent payments but also had deposited additional sums into the registry prior to the hearing on the landlord's motion for default. *K.D.* therefore limited *Freedman* to its facts and correctly concluded that *Freedman* was "simply following the established policy of liberality in setting aside defaults to permit a trial on the merits." *K.D.*, 445 So.2d at 1036.

No similar circumstances exist here.

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23 Fla. L. Weekly Supp. 668b**Online Reference: FLWSUPP 2307FOGE**

Mobile home parks -- Eviction -- Failure to obtain approval to become tenant -- Default -- Trial court erred in requiring mobile home owner to deposit money into court registry and in entering default upon tenant's failure to do so where complaint sought only eviction based on failure to obtain approval to become tenant and not recovery of unpaid rent -- Appeals -- Mootness -- Appeal of eviction action is not moot due to tenant's loss of property interest in mobile home, which was sold at public sale, as eviction has collateral legal consequences that affect tenant's rights

JAMES STEWART FOGELMAN, Appellant, vs. MHC ELDORADO VILLAGE, L.L.C., Appellee. Circuit Court, 6th Judicial Circuit (Appellate) in and for Pinellas County. Case No. 15-0035AP-88B. UCN 522015AP000035XXXXCI. October 27, 2015.

ORDER AND OPINION

Michael Fogelman (erroneously named "James" in the lower court pleadings and judgment; hereafter "Appellant") appeals the trial court's Order Requiring Deposit, and its subsequent Default Final Judgment of Eviction entered against him upon his failure to deposit money into the court registry. For the reasons set forth below, the orders of the trial court are reversed, and the eviction action is remanded for further proceedings.

Facts and Procedural History

Appellee owns Eldorado Village Mobile Home Park (the "Community"). Prior to the action below, Appellant had owned the mobile home located in the Community but had been evicted. Appellant subsequently transferred ownership of the mobile home to a third party. Thereafter, he moved back into the mobile home and submitted an application to Appellee for residency, as required by the rules of the Community. Appellant did not receive approval to live in the Community, apparently due to credit issues and his previous eviction. Nevertheless, he continued to live in the mobile home without approval. Appellee served Appellant with seven days' notice to vacate the premises, but Appellant did not vacate.

Appellee filed a complaint, and later an amended complaint, to evict Appellant for "[f]ailure...to be qualified as, and to obtain approval to become, a tenant or occupant," pursuant to Florida Statutes section 723.061(1)(e). After a hearing on its own motion to determine rent, the court below entered an order requiring Appellant to make a deposit of \$11,300.00 into the court registry as back rent. When he failed to pay that amount, the court entered a default judgment of eviction. Although Appellant filed a timely notice of appeal, he did not move for a stay. Therefore, a writ of possession was issued and executed, and thereafter, having not been removed from the Community, the mobile home was sold at a public sale. Alleging that Appellant no longer has any property right in the mobile home, Appellee filed a suggestion of mootness asserting that the appeal should be dismissed.

Standard of Review

When resolution of a case turns on the interpretation of a specific statute, the applicable standard of review is *de novo*. See *GTC, Inc. v. Edgar*, 967 So. 2d 781, 785 (Fla. 2007) [32 Fla. L. Weekly S546a].

Discussion

Appellee's Suggestion of Mootness would have this Court overlook the fact that evictions have collateral legal consequences, such as negatively affecting a person's ability to rent in the future. Where "collateral legal consequences that affect the rights of a party flow from the issue to be determined," it is improper to dismiss the appeal as moot. *See Goodwin v. State*, 593 So. 2d 211, 212 (Fla. 1992).

On the merits, Appellee asserts that the trial court acted within its inherent power when it ordered a deposit into the court registry. Citing *Koch v. Koch*, Appellee argues that a court's inherent power exists "even in the absence of statutory authority." 47 So. 3d 320, 323 (Fla. 2d DCA 2010) [35 Fla. L. Weekly D2091a]. However, that court went on to quote the Florida Supreme Court holding that "if a specific statute or rule applies, the trial court should rely on the applicable rule or statute rather than on inherent authority." *Id.* (quoting *Moakley v. Smallwood*, 826 So. 2d 221, 227 (Fla. 2002) [27 Fla. L. Weekly S357b]). Here, a specific statute was available to Appellee to recover the unpaid rent, had such relief been sought in Appellee's Complaint or Amended Complaint.

When nonpayment of rent is the basis of the action, Florida Statutes section 723.063 requires unpaid rent to be deposited in the court registry. Subsection (1) specifically addresses "any action based upon nonpayment of rent or seeking to recover unpaid rent." Subsection (2) further provides that "[i]n any action. . . under subsection (1), the mobile home owner shall pay into the registry . . . accrued rent." (emphasis supplied). However, the sole basis for Appellee's eviction action was section 723.061(1)(e), which provides that mobile home parks may evict occupants who continue to reside in the mobile home after failing to obtain approval. Thus, a statute specifically addresses the particular issue of unpaid rent, but Appellee never raised that issue in its pleadings.

This Court, in *Abramski v. Paradise Park Co-Op Inc.*, held that an order requiring the mobile home owner to deposit unpaid rent was proper where the body of the complaint sought only eviction, but the request for relief mentioned "recovery of rent due." 19 Fla. L. Weekly Supp. 178a (Fla. 6th Cir. App. Ct. November 22, 2011). Here, Appellee's request for relief sought only "judgment of eviction of the defendants from the Community, Lot and Mobile Home, a writ of possession, attorney's fees, costs and such further relief as deemed just and proper." The trial court ordered money deposited in the court registry as if the pleadings alleged nonpayment of rent. The trial court's order was in error because this remedy was never demanded or pled by Appellee.

Conclusion

Appellee had ample opportunity to seek recovery of unpaid rent from Appellant and did not do so. Therefore, the trial court erred in injecting such a claim into the case. Accordingly, it is,

ORDERED AND ADJUDGED that:

1. The Suggestion of Mootness is DENIED.
2. The Order Requiring Deposit is REVERSED.
3. The Default Judgment for Eviction is REVERSED and REMANDED for further proceedings. (DAY, WILLIAMS, and RAMSBERGER, JJ.)

* * *

19 Fla. L. Weekly Supp. 178a

Online Reference: FLWSUPP 1903ABRA

Mobile home parks -- Eviction -- Failure to deposit rent into court registry -- Where eviction action also sought recovery of rent due, trial court properly required tenant to deposit accrued rent into court registry prior to considering tenant's motion for rehearing/relief from final judgment of eviction -- No merit to claim that trial court erred in lifting stay of writ of possession without notice that rent was to be deposited into registry where court notified tenant of requirement to deposit rent at hearing on motion for rehearing/relief from judgment and gave tenant sufficient time to comply with requirement before lifting stay -- No merit to claim that trial court erred in entering final judgment of eviction without hearing where tenant was afforded opportunity to be heard at motion hearing, but tenant waived all defenses by failing to deposit rent into registry

JOANNE E. ABRAMSKI, Appellant, v. PARADISE PARK CO-OP, INC., a Florida not-for-profit corporation, Appellee. Circuit Court, 6th Judicial Circuit (Appellate) in and for Pinellas County. Case No. 11-000017AP-88A. UCN522011AP000017XXXXCV. November 22, 2011. Appeal from Final Judgment Pinellas County Court. Honorable Walt Fullerton, Judge. Counsel: Steven W. Hair, Clearwater, for Appellants. David S. Bernstein and Kenneth T. Curtin, St. Petersburg, for Appellee.

(PER CURIAM.) Appellant Joanne E. Abramski appeals the County Court Final Judgment of Eviction entered on October 12, 2011; and the "Order Lifting Stay of Writ (Count I, Eviction)" entered on April 6, 2011. We affirm and remand for further proceedings.

Statement of Case

On December 2, 2009, Paradise Park Co-Op, Inc., mobile home park ("Paradise") filed a complaint against mobile home owner Joanne E. Abramski, the tenant in the mobile home park, and her daughter Devon Elender Abramski. Count One of the Complaint seeks to evict Joanne Abramski ("Ms. Abramski") for failing to comply with the terms of her mobile home lot lease with Paradise, for violating the Rules and Regulations of the mobile home park, and violating section 723.061, Florida Statutes (2009). Count Two of the Complaint is an action for unlawful detainer against Devon Abramski ("Devon") allegedly for refusing to vacate the park and unlawfully withholding possession of the lot by illegally residing in Ms. Abramski's mobile home. Count Three of the Complaint is an action for trespass against Devon.

On April 22, 2010, Paradise, Ms. Abramski, and Devon entered into a "Stipulation to Settlement."¹ The Settlement Agreement of the parties was memorialized in a March 19, 2010, transcribed statement that is included in the appellate record. A review of the transcript of the statement reveals that Ms. Abramski and Devon agreed that Devon would permanently move out of the park and Devon was subject to limited visitation with her mother and grandparents. Further, it was agreed that

Joanne Abramski shall continue to be fully responsible for all monthly lot rent and other charges that may accrue at the property pursuant to her prospectus and no financial consideration or accommodation is due to her as a result of this agreement.

Joanne Abramski is not excused from any performance obligation imposed upon her by virtue of her tenancy at the community by way of this accommodation that we are extending to her and her daughter Devon Abramski.

(R 119-20). After further discussion of the terms of the settlement agreement, counsel for Paradise summarized as follows:

If any of the foregoing is violated, whether it be [Devon] moving out tonight or the three-day visitation allowance, payment of rent, compliance with the rules, any of these things we've agreed to today are violated, then [Paradise] is entitled to proceed to a hearing on the merits in this case and obtain a writ of possession for violation of this agreement and whatever other relief the Court may afford [Paradise], such as they would as [sic] requested under our complaint if we were going to Court rather than making this agreement today. Is that understood?

Ms. Abramski and Devon both responded in the affirmative. (R 129-30). It was further clarified that the settlement agreement was binding and applied to both Ms. Abramski and Devon. They were warned that if Devon violated the visitation agreement or Ms. Abramski failed to pay her mobile home lot rental payments the settlement agreement would be violated. (R 131-32).

On May 5, 2010, the County Court approved the "Stipulation to Settlement." Further, the Order directed that the funds deposited in the registry of the court by Ms. Abramski for mobile home lot rental payments accruing during the pendency of the action were to be released to Paradise.

On October 5, 2010, Paradise filed a "Motion for Entry of a Final Judgment of Eviction and Issuance of Writ of Possession Following Defendant's, Joanne E. Abramski and Devon Elender Abramski, Violation of the Terms of the Parties' Settlement Agreement." No hearing was conducted on the motion. On October 12, 2010, the County Court entered a Final Judgment of Eviction and directed the Clerk of Court to issue a writ of possession ten days after entry of the Order.

On October 18, 2010, through counsel, Ms. Abramski filed a "Motion for Rehearing and Motion to Set Aside Final Judgment of Eviction and Motion For Relief From Judgment" (hereinafter "motion for rehearing/relief from judgment"). On October 20, 2010, the County Court entered an order staying the writ of possession until it could hear the argument of the parties concerning the pending motion.

On January 25, 2011, Paradise filed a "Motion to Lift Stay on Writ of Possession and to Evict Defendants for Failure to Deposit Rents in Violation of Section 723.063, Fla. Stat." In support of the motion, Paradise filed the Affidavit of Charlotte A. Knowlton. The affidavit states that Ms. Knowlton is the Property/Community Manager and Ms. Abramski had not paid rent lot for her lease since September 20, 2010. Rental payments as of the date of the affidavit were due for October 2010 through January 2011.

On April 4, 2011, a hearing was conducted on the pending motions and the parties appeared before the County Court. The parties have not filed a transcript of the hearing with this Court.

On April 6, 2011, the County Court entered an "Order Lifting Stay of Writ (Count I, Eviction)." The Order states that it is undisputed that Ms. Abramski had not tendered the mobile home lot rental payments to Paradise or deposited any rental payments in the Court Registry since October 2010. At the time of the hearing, the undisputed unpaid balance totaled \$4,183.00. The Order recites that the proceedings were recessed to allow Ms. Abramski to deposit the rental payments into the Court Registry, but she failed to do so. The Order continued:

Because Florida law requires Defendants/Tenants to deposit undisputed, unpaid rental before the Court may hear defenses to an eviction, and because Defendants/Tenants failed

to make any deposit, the Court orally Ordered the Stay and the Writ of Possession lifted, recalled, and cancelled.

The Court, however, announced that if the total sum was deposited, an evidentiary hearing might still be scheduled. The Court then delayed an additional forty-eight (48) hours before executing this Order. Even so, there is still no Registry Deposit.

The Order directed the Sheriff execute the Writ of Possession. In effect the Order denied the motion for rehearing/relief from judgment. This appeal by Ms. Abramski followed. Ms. Abramski posted a bond and the County Court Order has been stayed pending appeal.

Standard of Review

The appellate court is to employ an abuse of discretion standard to review a trial court order denying a motion for rehearing or to review an order ruling on a motion for relief from judgment filed under Florida Rule of Civil Procedure 1.540(b). J.J.K. Int'l, Inc. v. Shivbaran, 985 So. 2d 66, 68 (Fla. 4th DCA 2008) [33 Fla. L. Weekly D1648a].

Analysis

At the April 4, 2011, hearing, the trial court had before it Ms. Abramski's motion for rehearing/relief from judgment filed on October 18, 2010; and Paradise's "Motion to Lift Stay on Writ of Possession and to Evict Defendants for Failure to Deposit Rents in Violation of Section 723.063, Fla. Stat.," filed on January 25, 2011.

As noted above, the parties have not filed a transcript of the April 4, 2011, hearing. However, the trial court's April 6, 2011, "Order Lifting Stay of Writ (Count I, Eviction)" states that it was undisputed that Ms. Abramski had not tendered rental payments to Paradise or deposited any rental payments in the Court Registry since October 2010. At the time of the hearing the undisputed unpaid rental payment balance totaled \$4,183.00.

The Order indicates that at the April 4, 2011, hearing, Ms. Abramski was directed to deposit into the registry of the court the accrued, unpaid mobile home lot rental payments, but she failed to do so. The trial court orally lifted the stay, but informed Ms. Abramski that if \$4,183.00 was deposited into the registry of the court, an evidentiary hearing on the pending motions might still be scheduled. After a forty-eight hour delay, the funds were not deposited and the Sheriff was ordered to proceed to execute the writ of possession.

Ms. Abramski raises two issues on appeal. First, she claims that the trial court erred when it lifted the stay and directed the Sheriff to execute the writ of possession. She concedes that section 723.063(2), Florida Statutes (2010), of the Mobile Home Act is controlling in this case. The statute provides:

In any action by the park owner or a mobile home owner brought under subsection (1) [any action based upon nonpayment of rent or *seeking to recover unpaid rent*], the mobile home owner shall pay into the registry of the court that portion of the accrued rent, if any, relating to the claim of material noncompliance as alleged in the complaint, or *as determined by the court*. The court shall notify the mobile home owner of such requirement. The failure of the mobile home owner to pay the rent, or portion thereof, into the registry of the court as required herein constitutes an absolute waiver of the mobile home owner's defenses other than payment, and the park owner is entitled to an immediate default.

(Emphasis added.) Citing no prior court decisions, Ms. Abramski argues that if a mobile home park owner seeks eviction for any reason other than nonpayment of rent, there is no statutory authority to require the mobile homeowner to post the accrued rents into the registry of the court. Further, she asserts she was never notified by the trial court of the requirement that the accrued mobile home lot rents be deposited into the registry of the court. Thereafter, she admits that she was given forty-five minutes on the date of the hearing to deposit the past due rents into the registry of the court. In reply brief, contrary to the statement in the April 6, 2011, order, she claims the trial court did not inform her that she had additional forty-eight hours to deposit such sums before it would the written order directing the Sheriff to execute the writ of possession. Ms. Abramski has failed to supply this Court with a transcript of the April 4, 2011, hearing in order to refute the statements in the April 6, 2011, order.

This Court notes that the Settlement Agreement of the parties provided that Ms. Abramski would remit all monthly lot rental payments and other charges that may accrue at the property. (R. 119-20, 131-32). Further, Count One of the Complaint seeks eviction of Ms. Abramski and the prayer for relief states:

WHEREFORE, Plaintiff demands judgment against J. Abramski, and all tenants claiming by, through, or under her, for (i) recovery of rent due; and (ii) for the issuance of a Writ of Possession directing the Sheriff of Pinellas County to permanently remove J. Abramski, and anyone claiming by, through or under her, from the Lot forevermore, together with reasonable attorneys' fees, court costs, and such other relief as this Honorable Court shall deem just and proper.

Although the Complaint identifies Count One as a claim for "Eviction," the count also is seeking "recovery of rent due."

The undisputed unpaid past-due rent "as determined by the court" totaled \$4,183.00 at the time of the hearing. *See* § 723.063(2), Fla. Stat. Therefore, under the plain meaning of the statute, whether under the terms of the settlement agreement or based upon the relief sought in the Complaint, the trial court properly required Ms. Abramski to deposit \$4,183.00 into the registry of the court prior to it considering her motion for rehearing/relief from judgment. *See* § 723.063(2), Fla. Stat. Further, this Court concludes that the trial court's oral order at the April 4, 2011, hearing directing her to deposit \$4,183.00 into the registry of the court properly notified Ms. Abramski of the requirement and she was given sufficient time to comply. The trial court did not abuse its discretion and Ms. Abramski's argument is without merit.

In her second issue, Ms. Abramski asserts that her due process rights were violated when the trial court entered the April 6, 2011, "Order Lifting Stay of Writ (Count I, Eviction)" without notice that rent was to be deposited into the registry and when the trial court did not conduct a hearing prior to the entry of the October 12, 2010, Final Judgment of Eviction.

This Court has concluded that the trial court's oral order at the April 4, 2011, hearing properly notified Ms. Abramski of the requirement to deposit the past due mobile home lot rental payments into the registry of the court. She was given sufficient time to comply with the requirement before the April 6, 2011, Order was entered. Ms. Abramski's argument that there was a due process violation based on failure to give notice is without merit.

In the argument that her due process rights were violated by the entry of the October 12, 2010, Final Judgment of Eviction without a hearing, Ms. Abramski is attempting to raise the same argument she raised in her motion for rehearing/relief from judgment without the necessity of paying the past-due rents into the registry of the court.

She has conceded that this matter is governed by section 723.063(2) that requires the tenant to deposit rental payments into the registry of the court during the pendency of an action. Failure to require all rents to be deposited into the registry of the court may cause irreparable injury to the landlord because it "could be required to seek other sources to satisfy any judgment they should obtain. Such alternative sources may not exist or may be insufficient to fully satisfy the judgment." *MLH Property Managers, Inc. v. Cox*, 613 So. 2d 1358, 1360-61 (Fla. 4th DCA 1993).

Procedural due process requires both fair notice and a real opportunity to be heard at a meaningful time and in a meaningful manner. *Massey v. Charlotte County*, 842 So. 2d 142, 146 (Fla. 2d DCA 2003) [28 Fla. L. Weekly D407b]. Section 83.60(2), Florida Statutes governing residential landlord/tenant actions, is a comparable statute to section 723.063(2) that also requires tenants to deposit delinquent and accruing rental payments into the registry of the court during the pendency of the eviction action. Section 83.60(2) has been held not to violate due process and is not unconstitutional. *See Karsteter v. Graham Co.*, 521 So. 2d 298 (Fla. 3d DCA 1988) (citing *Lindsey v. Normet*, 405 U.S. 56, 65 (1972)).

Further, Ms. Abramski was afforded the right to be heard when the hearing on her motion for rehearing/relief from judgment was conducted. However, she failed to comply with the trial court's order directing her to pay the undisputed, past-due mobile home lot rental payments into the registry of the court in accordance with section 723.063(2), and waived all defenses to the eviction by her actions. Ms. Abramski's due process rights were not violated and the trial court did not err or abuse its discretion in this matter.

The October 12, 2010, Final Judgment of Eviction and the April 6, 2011, "Order Lifting Stay of Writ (Count I, Eviction)" are affirmed.

Affirmed.

¹The document entitled "Stipulation To Settlement" purports to be an agreement between Paradise, Joanne Abramski, and Devon Abramski. The stipulation was executed only by counsel for Paradise and Ms. Abramski. However, the terms and conditions of the oral settlement agreement between Paradise, Ms. Abramski, and Devon are memorialized in a transcribed statement.

* * *

Fla. Stat. § 723.002

Current through the 2025 Regular Session.

LexisNexis® Florida Annotated Statutes > **Title XL. Real and Personal Property.**
(Chs. 689 — 723) > **Chapter 723. Mobile Home Park Lot Tenancies. (§§ 723.001 — 723.1255)**

§ 723.002. Application of chapter.

(1) The provisions of this chapter apply to any residential tenancy in which a mobile home is placed upon a rented or leased lot in a mobile home park in which 10 or more lots are offered for rent or lease. This chapter shall not be construed to apply to any other tenancy, including a tenancy in which both a mobile home and a mobile home lot are rented or leased by the mobile home resident or a tenancy in which a rental space is offered for occupancy by recreational-vehicle-type units which are primarily designed as temporary living quarters for recreational camping or travel use and which either have their own motor power or are mounted on or drawn by another vehicle. When both the mobile home and lot are rented or when fewer than 10 lots are available for rent or lease, the tenancy shall be governed by the provisions of part II of chapter 83, the "Florida Residential Landlord and Tenant Act." However, this chapter shall continue to apply to any tenancy in a park even though the number of lots offered in that park has been reduced to below 10 if that tenancy was subject to the provisions of this chapter prior to the reduction in lots. This subsection is intended to clarify existing law.

(2) The provisions of ss. 723.035, 723.037, 723.038, 723.054, 723.055, 723.056, 723.058, and 723.068 are applicable to mobile home subdivision developers and the owners of lots in mobile home subdivisions.

(3) Any other provision of this chapter or any other provision of the Florida Statutes to the contrary notwithstanding, the provisions of this chapter shall be applicable to a park trailer located on a mobile home lot in a mobile home park.

History

S. 1, ch. 84-80; ss. 1, 13, ch. 90-198; s. 3, ch. 92-148.

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Fla. Stat. § 723.004

Current through the 2025 Regular Session.

LexisNexis® Florida Annotated Statutes > **Title XL. Real and Personal Property.**
(Chs. 689 — 723) > **Chapter 723. Mobile Home Park Lot Tenancies. (§§ 723.001 — 723.1255)**

§ 723.004. Legislative intent; preemption of subject matter.

(1) The Legislature finds that there are factors unique to the relationship between a mobile home owner and a mobile home park owner. Once occupancy has commenced, unique factors can affect the bargaining position of the parties and can affect the operation of market forces. Because of those unique factors, there exist inherently real and substantial differences in the relationship which distinguish it from other landlord-tenant relationships. The Legislature recognizes that mobile home owners have basic property and other rights which must be protected. The Legislature further recognizes that the mobile home park owner has a legitimate business interest in the operation of the mobile home park as part of the housing market and has basic property and other rights which must be protected. This chapter is created for the purpose of regulating the factors unique to the relationship between mobile home owners and mobile home park owners in the circumstances described herein. It recognizes that when such inequalities exist between mobile home owners and mobile home park owners as a result of such unique factors, regulation to protect those parties to the extent that they are affected by the inequalities, while preserving and protecting the rights of both parties, is required.

(2) There is hereby expressly preempted to the state all regulation and control of mobile home lot rents in mobile home parks and all those other matters and things relating to the landlord-tenant relationship treated by or falling within the purview of this chapter. Every unit of local government is prohibited from taking any action, including the enacting of any law, rule, regulation, or ordinance, with respect to the matters and things hereby preempted to the state.

(3) It is expressly declared by the Legislature that the relationship between landlord and tenant as treated by or falling within the purview of this chapter is a matter reserved to the state and that units of local government are lacking in jurisdiction and authority in regard thereto. All local statutes and ordinances in conflict herewith are expressly repealed.

(4) If any provision of this chapter is held invalid, it is the legislative intent that the preemption by this section shall no longer be applicable to the provision of the chapter held invalid.

(5) Nothing in this chapter shall be construed to prevent the enforcement of a right or duty under this section, s. 723.022, s. 723.023, s. 723.031, s. 723.032, s. 723.033, s. 723.035, s. 723.037, s. 723.038, s. 723.061, s. 723.0615, s. 723.062, s. 723.063, or s. 723.081 by civil action after the party has exhausted its administrative remedies, if any.

History

S. 1, ch. 84-80; s. 2, ch. 86-162; s. 4, ch. 92-148.

Fla. Stat. § 723.063

Current through the 2025 Regular Session.

LexisNexis® Florida Annotated Statutes > **Title XL. Real and Personal Property.**
(Chs. 689 — 723) > **Chapter 723. Mobile Home Park Lot Tenancies. (§§ 723.001 — 723.1255)**

§ 723.063. Defenses to action for rent or possession; procedure.

(1) In any action based upon nonpayment of rent or seeking to recover unpaid rent, or a portion thereof, the mobile home owner may defend upon the ground of a material noncompliance with any portion of this chapter or may raise any other defense, whether legal or equitable, which he or she may have. The defense of material noncompliance may be raised by the mobile home owner only if 7 days have elapsed after he or she has notified the park owner in writing of his or her intention not to pay rent, or a portion thereof, based upon the park owner's noncompliance with portions of this chapter, specifying in reasonable detail the provisions in default. A material noncompliance with this chapter by the park owner is a complete defense to an action for possession based upon nonpayment of rent, or a portion thereof, and, upon hearing, the court or the jury, as the case may be, shall determine the amount, if any, by which the rent is to be reduced to reflect the diminution in value of the lot during the period of noncompliance with any portion of this chapter. After consideration of all other relevant issues, the court shall enter appropriate judgment.

(2) In any action by the park owner or a mobile home owner brought under subsection (1), the mobile home owner shall pay into the registry of the court that portion of the accrued rent, if any, relating to the claim of material noncompliance as alleged in the complaint, or as determined by the court. The court shall notify the mobile home owner of such requirement. The failure of the mobile home owner to pay the rent, or portion thereof, into the registry of the court as required herein constitutes an absolute waiver of the mobile home owner's defenses other than payment, and the park owner is entitled to an immediate default.

(3) When the mobile home owner has deposited funds into the registry of the court in accordance with the provisions of this section and the park owner is in actual danger of loss of the premises or other personal hardship resulting from the loss of rental income from the premises, the park owner may apply to the court for disbursement of all or part of the funds or for prompt final hearing, whereupon the court shall advance the cause on the calendar. The court, after preliminary hearing, may award all or any portion of the funds on deposit to the park owner or may proceed immediately to a final resolution of the cause.

History

S. 1, ch. 84-80; s. 928, ch. 97-102.

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